

CHAPTER 56.

An Act to amend the Military Lands Act, 1892.

[8th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

County or borough council may lease land and volunteer corps may borrow on security of lease.

1.—(1.) The council of a county or borough holding land on behalf of one or more volunteer corps under subsection three of section one of the Military Lands Act, 1892, may lease the land or any part thereof to any such corps for military purposes for a period not exceeding ninety-nine years.

(2.) The powers of a volunteer corps to borrow and of the Public Works Loan Commissioners to lend under the Military Lands Acts, 1892 and 1897, shall extend to borrowing and lending on the security of any such lease.

(3.) If the volunteer corps is disbanded or the land ceases to be used for military purposes, the lease shall vest in the Secretary of State, subject to repayment of any money borrowed on the security of the lease and not already repaid.

Provision as to byelaws.

2.—(1.) Where any land is for the time being appropriated by the Admiralty for any purpose of Her Majesty's navy, or used by the Admiralty for any such purpose, the Admiralty shall have the same power of making byelaws with respect to the land as may be exercised by a Secretary of State with respect to land appropriated or used for a military purpose, as the case may be, and the provisions of the Military Lands Act, 1892, relating to byelaws shall apply accordingly.

55 & 56 Vict. c 43.

(2.) Where any land, the use of which can be regulated by byelaws under the Military Lands Act, 1892, or this Act, abuts on any sea or tidal water, or where rifle or artillery practice is or can be carried on over any sea, tidal water, or shore, from any such land, byelaws may be made in relation to any such sea, tidal water, or shore, as if they were part of the land.

Provided that—

(a.) If any such byelaw injuriously affects or obstructs the exercise of any private right of any person in or over any such sea, tidal water, or shore, that person shall be entitled to compensation, and the compensation shall, in case of difference, be ascertained in manner provided by the Lands Clauses Acts with respect to the compensation for land taken otherwise than by agreement; and

(b.) Any such byelaw shall not injuriously affect any public right within the meaning of this section unless made with the consent of the Board of Trade, but the Board of Trade, if satisfied after such inquiries and such notice and opportunity for objections as herein-after mentioned that a restriction of any public right is required for the safety of the public, or for the exigencies of the military or naval

purpose for which the area to which the byelaws apply is used, may consent to a byelaw restricting the public right to such extent as under all the circumstances of the case seems reasonable; and

- (c.) No such byelaw shall be made in relation to any sea, tidal water, or shore which may for the time being be vested in Her Majesty, and under the management of the Commissioners of Woods, without the consent in writing of such Commissioners on behalf of Her Majesty first had and obtained for that purpose, which consent such Commissioners are hereby authorised to give.

(3.) The Board of Trade before consenting to any byelaw under this section, shall cause notice of the byelaw to be given by advertisement or otherwise in the locality, in order that any such town, harbour, and other local authorities and persons as are interested may have an opportunity for making objections to the byelaw, and shall consider any objections made, and shall make such inquiries as appear to the Board necessary for the purpose of ascertaining that the byelaw will not unreasonably interfere with any public right.

(4.) For the purposes of this section "public right" means any right of navigation, anchoring, grounding, fishing, bathing, walking, or recreation.

(5.) Where an area to which byelaws under this section apply consists of any sea or tidal water, or the shore thereof, and the boundaries of the area cannot, in the opinion of the authority making the byelaws, be conveniently marked by permanent marks, those boundaries shall be described in the byelaws, and shall be deemed to be sufficiently marked within the meaning of section seventeen of the Military Lands Act, 1892, if, while the area is in use for military or naval purposes, sufficient means are taken to warn the public from entering the area.

(6.) Section three of the Artillery and Rifle Ranges Act, 1885, 48 & 49 Vict. c. 36. is hereby repealed.

3. Section twenty-three of the Military Lands Act, 1892, shall have effect as if the definition of "land" in that section included the bed of the sea or any tidal water, and also any right of interference with the free use of any land, and the Military Lands Act, 1892, as extended by the Naval Works Act, 1895, and as amended by this Act, shall be construed accordingly. Extension of meaning of "land." 58 & 59 Vict. c. 35.

4. Notwithstanding anything in section two of the Military Lands Act, 1892, the period of three years mentioned in section one hundred and twenty-three of the Lands Clauses Consolidation Act, 1845, shall be calculated from the passing of the Act confirming any Provisional Order under the Military Lands Act, 1892, and not from the passing of the Military Lands Act, 1892. Amendment of 55 & 56 Vict. c. 43. s. 2, as to limit of time for compulsory purchase.

5. In the application of this Act to Scotland the following provisions shall have effect:— Application to Scotland.

In subsection (9) of section twenty-five of the Military Lands Act, 1892, "twenty-one" shall be substituted for "twenty-two."

Short title
and con-
struction.

6. This Act shall be construed as part of the Military Lands Act, 1892, and may be cited as the Military Lands Act, 1900, and the Military Lands Act, 1892, the Military Lands Act, 1897, and this Act, may be cited collectively as the Military Lands Acts, 1892 to 1900.

CHAPTER 57.

An Act to apply a sum out of the Consolidated Fund to the service of the year ending on the thirty-first day of March one thousand nine hundred and one, and to appropriate the Supplies granted in this Session of Parliament. . [8th August 1900.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted; and be it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Grant out of Consolidated Fund.

Issue of
95,234,796*l.*
out of the
Consolidated
Fund.

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom of Great Britain and Ireland, and apply towards making good the supply granted to Her Majesty for the service of the year ending on the thirty-first day of March one thousand nine hundred and one, the sum of ninety-five million two hundred and thirty-four thousand seven hundred and ninety-six pounds.

Power for
the Treasury
to borrow.

2. The Treasury may borrow from any person, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit of the said sum, any sum or sums not exceeding in the whole the sum of ninety-five million two hundred and thirty-four thousand seven hundred and ninety-six pounds, and the Treasury shall repay the moneys so borrowed, with interest not exceeding five pounds per centum per annum, out of the growing produce of the Consolidated Fund at any period not later than the next succeeding quarter to that in which the said moneys were borrowed.

Any moneys so borrowed shall be placed to the credit of the account of the Exchequer, and shall form part of the said